

Nazim Hussain v. Pashchimanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 26 March 2021 · WRIT - C No. - 9276 of 2021 · **Writ disposed without merits; petitioner to file Clause 8.1 objection; assessing officer to decide by speaking order.**

HEADNOTE

On a challenge to a provisional assessment, the consumer claimed an undecided objection and the licensee denied that any objection had been filed; neither a final assessment nor a demand was produced. Without entering the merits, the Division Bench disposed of the writ by giving the petitioner three weeks to file an objection under Clause 8.1(a)(b) of the U.P. Electricity Supply Code, 2005. If filed, the assessing officer must pass a reasoned speaking order on all points of objection, and any existing final assessment or demand would remain subject to that decision.

FACTUAL SUMMARY

Nazim Hussain challenged Pashchimanchal Vidyut Vitran Nigam Limited's provisional assessment dated 2 September 2020, claiming he had filed an objection on 19 February 2020 which was never decided. The licensee's written instructions denied that any objection had been filed. Neither a final assessment nor a demand notice was produced. The petitioner then sought one opportunity to object and to be heard under Clause 8.1(a)(b) of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

provisional assessment — time-bound objection and speaking order

HOLDING

Without entering the merits of a challenge to a provisional assessment, the Court directed the petitioner to file an objection within three weeks; if filed, respondent no. 2 must decide it by a reasoned speaking order dealing with all points of objection; any final assessment or demand already issued would be subject to that fresh decision; failing timely filing, the licensee could proceed in accordance with law. ¶ 1-4

FLAG clause cited as 8.1(a)(b)

PRINCIPLE TAGS

assessment-provisional-objection-speaking-order Where a consumer challenges a provisional assessment and seeks a Clause 8.1 hearing, the Court may, without deciding merits, permit a time-bound objection and require the assessing officer to pass a reasoned speaking order, with any existing final assessment or demand remaining subject to that decision. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD ALREADY FILED AN OBJECTION ON 19.2.2020
licensee denied any objection; Court did not resolve the conflict

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 2.9.2020
Court expressly declined to enter the merits

NOT DECIDED — EXISTENCE OR VALIDITY OF ANY FINAL ASSESSMENT OR DEMAND NOTICE

